

Arlington Town Meeting - Motion to Amend Article 47

ARTICLE NO. 47

Dated: April 29, 2026

I, Eugene B. Benson, do hereby submit the following Motion to Amend Article 47, Zoning Bylaw Amendment / Definition of Building Height:

To amend the main motion by making the following change to the new sentence that Article 47 proposes as the second sentence of the Building Height definition found in Definitions, Section 2 of the Zoning Bylaw. Add this phrase to the end of clause (b) of the proposed new second sentence of the definition: provided the lowest habitable floor is elevated to or above the base flood elevation.

Comment:

The effect of this amendment is that the definition of Building Height in the Zoning Bylaw would be as follows when applied to the recommended vote of the Redevelopment Board (the addition proposed by this amendment is underlined):

Building Height: The vertical distance of the highest point of the roof above the average grade of the curb line abutting the property. In the Floodplain District, building height is the vertical distance of the highest point of the roof measured from the higher of (a) the average grade of the curb line abutting the property, or (b) the base flood elevation established by FEMA provided the lowest habitable floor is elevated to or above the base flood elevation. Refer to Sections 5.3.19, 5.3.20, and 5.4.2.B(5) for detailed exceptions.

This amendment clarifies that measuring building height from the base flood elevation does not apply to existing buildings at ground level in a Floodplain District, which are not required to elevate their first floor – unless they choose to elevate the lowest habitable floor to at least the base flood elevation. It also clarifies that the height above base flood elevation does not apply to new commercial buildings in the Floodplain District, which are not required to elevate their first floor if that floor meets certain flood resistant standards – unless they choose to elevate the lowest habitable floor to at least the base flood elevation.

Respectfully submitted,

Eugene B. Benson

Eugene B. Benson, Precinct 10

Date Voted: _____

Action Taken: _____